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THE LAW LIBRARY: REVISITING TRADITIONAL LEGAL RESEARCH METHODS

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1. INTRODUCTION

Lawyers know that the law library and the techniques of legal research are indispensable to a successful law practice. As the volume and variety of legal materials continue to grow every day with the new laws, the increasing court decisions interpreting them, the amount of law books being published as well as the introduction of new technology, a lawyer has to teach oneself the law involved in a problem through legal research.

The purpose of legal research is to ascertain the legal consequences of a specific set of actual or potential facts. It is always the facts of any given situation that suggest – indeed dictate – the issues of law that need to be researched. The key to successful legal research is organization. Invaluable in legal research is how to find, assess and apply all these legal materials to the integrated skills of legal analyses, problem solving and writing.

The key to successful legal research is organization. As with any simple tasks, one needs a game plan that helps you comprehend and complete the job as quickly, efficiently and thoroughly as possible. For legal research, the best plan simplifies the research process by breaking it down into basic steps that that it becomes an easily understandable process. To achieve this, the law library is a fascinating place to discover what is appropriate to problem solving.

2. CHARACTERISTICS OF LEGAL MATERIALS

Before one can begin to understand the methods employed in legal research, it is necessary to know that the legal sources you are consulting have legal authority. Legal authority is any published source of law setting forth legal rules, legal doctrine or legal reasoning that can be used as bases for legal decisions. When utilized in

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discussions about legal research, the term authority is used to refer both to the types of legal information and to the degree of persuasiveness of legal information.[2]

Legal materials or law books can be classified into three general categories:[3]

2.1 Primary Sources

Primary sources are recorded authoritative statements of legal rules by governmental institutions to be enforced by the State. They are further subdivided into mandatory and persuasive authorities.

2.1.1 Mandatory Authority

Mandatory authority is the authority that a given court is bound to follow. Constitutional provisions, statutes, international conventions and treaties, judicial decisions, administrative rules and regulations, ordinances and court rules constitute mandatory authorities. As between an official and unofficial citation, one must cite the official sources first.

2.1.2 Persuasive Authority

Persuasive authority is that law or reasoning which a given court may, but is not bound to follow. If a case is not binding on later courts but contains an excellent analysis and therefore provides guidance for any court which happens to read it, it is persuasive authority. Because of the cogency of its reasoning, the high standing of the court deciding it, or the eminence of its author, persuasive authority may tend to sway a court even though it is in no way binding upon it.[4]

Other examples of persuasive authorities are Opinions of the Secretary of Justice and administrative agencies and even other foreign judicial opinions which have a significant effect upon Philippine jurisprudence especially when the laws or

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[2] R.M. MERSKY & D.J. DUNN, LEGAL RESEARCH ILLUSTRATED, 2 (8th ed., 2002).

[3] *Ibid.*, p. 9. See also E.R. POLLACK, FUNDAMENTALS OF LEGAL RESEARCH, 3-12 (2d ed., 1962).

[4] M.O. PRICE, H. BITNER & R. BYSIEWICZ, EFFECTIVE LEGAL RESEARCH, 3 (4th ed., 1979).

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constitutional provisions were taken from the United States. The reason behind this is that the strong influence appear to be rooted in analogous legal concepts, principles and procedures which were obtained during American rule.

2.2 Secondary sources are those materials which are not primary authorities but annotate, discuss or analyze legal doctrines and are considered secondary authorities. These include treatises, looseleaf services, restatements, hornbooks, casebooks, legal encyclopedias, practice manuals, form-books, legal periodical articles, and annotated compilations for their annotations. They vary in purpose and quality, ranging from authoritative treatises by academic scholars to superficial works by hack writers. The best of these works have persuasive value depending on the prestige of their authors or the quality of their scholarship. Secondary sources can assist in analyzing a problem and their footnotes provide references to primary sources and other secondary materials.[5]

2.2.1 Restatements of the Law

Restatements of the law are a series of important commentaries on American Law which attempt to organize and articulate the rules of American common law, a project of the American Law Institute (ALI). Prepared by notable reporters, scholars and jurists, it covers eleven specific topics: agency, conflict of laws, contracts, foreign affairs law, judgments, property, restitution, security, torts, trusts and unfair competition.[6] Now on its third series, features include tables of court cases, statutes, etc., conversion tables and cross-references to West's Key Numbers System and ALR annotations.

Example: *Restatement (Third) of the Foreign Relations Law of the United States* (ALI, 1986).

2.2.2 Looseleaf Services

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[5] M.L. COHEN & K.C. OLSON, LEGAL RESEARCH, 6 (6th ed., 1996).

[6] *Ibid.*, p. 226.

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Looseleaf services are frequently supplemented research tools which focus on specific subject areas and contain primary legal sources, finding aids and secondary materials. These publications provide comprehensive and current access to special fields such as family law, labor law, tax law, securities regulations, etc. and are published by commercial entities, like the Bureau of National Affairs (BNA) and Commerce Clearing House (CCH).[7]

Examples: BNA's *Labor Relations Reporter*

CCH *Standard Federal Tax Reporter*

2.2.3 *Legal Encyclopedias*

Legal encyclopedias are multi-volume sets describing systematically the entire body of law wherein expository statements on principles of law are alphabetically and topically arranged. These texts are non-critical in approach and provide supporting reference to cases in the footnotes. However, the researcher should realize that one should read the cases cited to see if they are in point. There are no table of cases in the indexes. Leading American national examples are the *American Jurisprudence, 2d* (Am. Jur. 2d) and the *Corpus Juris Secundum* (C.J.S.). While tending to be general and simple in its analyses, both volumes provide an introduction to unfamiliar areas of law, explain the concepts and legal terminologies. Access to them can be made through the indexes found in each volume or the complete indexes at the end of the set.

There were early attempts to publish a legal encyclopedia in the Philippines. Alvir and Associates published the first volume of *Cyclopedia of Philippine Law* while only two volumes of Venida's *Encyclopedia of Philippine Law and Jurisprudence* came out. Unfortunately, both endeavors died a natural death.

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[7] *Ibid.*, p. 239.

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Examples: *Corpus Juris Secundum* (CJS) West Pub., 1959. 101 v & 5 v.

American Jurisprudence 2d (Am. Jur. 2d) Lawyers Coop., 1965-1978. 83 v.

International Encyclopedia of Comparative Law. v.

Encyclopedia Juridica Española (F. Seix, ed.) 1910. 30 v.

Modern Legal Systems: A Cyclopedia (K. Redden) v.

Halsbury's Laws of England. 2d ed. 1952. 42 v.

Encyclopedia of Public International Law. 1992. 12 v.

2.2.4 Hornbooks

A hornbook is a popular reference to a series of treatises published by the West Publishing Group, each of which reviews a certain field of law in summary textual form as opposed to a casebook which is a teaching tool and includes many reprints of court opinions.[8]

Examples: *Prosser on Torts*

Calamari & Perello on Contracts

2.2.5 Practice Manuals

Practice manuals provide you with good understanding of the procedural and substantive law as well as "hands on" instructions necessary to file and prosecute your case. Similar to handbooks, they usually cover a specialized area of practice.

Examples: *Handbook on Trial Advocacy* (USAID, 2008)

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[8] R.M. MERSKY & D.J. DUNN, *op. cit.*, note 1 at xxv.

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American Jurisprudence Trials. 1964-1994. 50 v.

This set covers matters common to all types of trial practice. It also includes *Model Trials* on specific types of trials, *i.e.*, personal injury, criminal and business-related cases written by experienced trial lawyers.

American Jurisprudence Proof of Facts

It provides a detailed discussion of what must be proved in virtually every kind of civil or criminal case. Access to the varied topics is made through its subject matter index and a listing of collateral references for each subject. It also contains checklists and planning guides to aid in the establishment of the facts in issue. This set is now on its third series (Am. Jur. Proof of Facts, 3d) 1988-2002 in 65 volumes.

2.2.6 *Form-Books*

Form-books are aids in drafting legal documents and include sample instruments which are standard guides for an attorney. Some form-books are annotated, containing forms of instruments and reference to cases which have favorably construed the provisions or editorial comments.

Examples: S. Guevarra, *Legal Forms, Annotated.* 1977

L.M. Tañada & F. A. Rodrigo, *Philippine Legal Forms*, 1979. 2 v.

F.C. Fisher, *Philippine Legal and Business Forms* (4th ed., 1948)

American Jurisprudence Legal Forms, Annotated. 1953-55. 14 v. with pocket supplements.

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American Jurisprudence Legal Forms, 2d ed. 1971-1974. 19 v.

American Jurisprudence, Pleading and Practice Forms, Annotated. 1956-1959. 23 v., with pocket supplements.

2.2.7 Annotations

Annotations are explanations or commentaries or extensive notes based on the issues within an opinion of a court usually appended after a reprinted case in a compilation. It is organized into a coherent statement of law but do not question these decisions[9] or reconcile conflicting decisions regarding the topic. There are two kinds: (a) statutory – a brief history of the law and facts of cases interpreting statutes passed by the legislature which are usually found in codes and compilations and cites research references to other secondary materials.

Examples: *Philippine Annotated Laws* (P.A.L.)

U.S. Code Annotated (U.S.C.A.)

U.S. Code Service (U.S.C.S.)

(b) Textual – expository essays of varying lengths on significant legal topics chosen for selected cases with the essays

Examples: *Supreme Court Reports, Annotated* (SCRA), v. 1, 1961 to date.

Annotations can be located through the use of the Subject-Index of Annotations found in pages 591-624 of volume 3.

American Law Reports (ALR), 1st series, 1919-1948. 175 v. 2nd series, 1948-1965 (A.L.R.

[9] *Ibid.*, p. xvi.

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2d) 100 v. 3rd series (A.L.R. 3d), 1965-1980. 100 v. 4th series (A.L.R. 4th), 1980-1992. 90 v. 5th series (A.L.R. 5th), 1992 to date.

Editors select a case in point to illustrate a principle of law that warrants annotations and discusses all cases involving an issue and gives exceptions to and qualifications, and applications of those principles.

To check if an ALR annotation is superseded or supplemented, use the Annotation History Table located at the back of each volume of the ALR Index.

2.3 Finding Tools

It is the lawyer's job to ascertain the state of the law on a particular issue in order to be able to predict with reasonable certainty the success of a cause of action or the success of a defense. Thus, they are faced with the problem of locating primary authorities on which they and the court will rely on in determining the outcome of a case. Because of the growing mass of information emanating from laws, administrative regulations, and judicial opinions which when published are arranged chronologically, the lawyers need to have subject access to them. They not only need to be updated but they have to locate laws and cases in point in order to appraise their value as precedents.

Included in this category are search books, indexes, digests, law dictionaries, directories, tables, citators and other tools which aid in the use of primary and secondary sources.

2.3.1 Digests

Digests are indexes to reported cases, providing brief, unconnected statements of court holdings on points of law which are arranged by subject. They reprint headnotes found in the case reports.

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Examples: *Philippine Digest.* (1901-1945) 13 v.

Republic of the Philippines Digest. (1946-1966) 8 v. and supplement

Philippine Report, 1974 to date (UP Law Center)

SCRA Digest. 4 v. with Annual Index-Digests

American Law Reports (ALR) *Digests*

American Digest System – indexes all the decisions reprinted in the National Reporter System in 11 units of *Decennial Digests* with a *General Digest* to keep it current. It uses the West's classification system which divides the law into 7 main classes: Persons, Property, Contracts, Torts, Crimes, Remedies and Government. Each subclass of topics is assigned a key number which is cumulative. It has a table of cases and Descriptive Word Index.

2.3.2 *Law Dictionaries*

Dictionaries collect the definitions of legal terms in alphabetical order with citations to sources either from a statute, decision or text.

Examples: *Ballantine's Law Dictionary* (3d ed., 1969).

Black's Law Dictionary (7th ed., 1999).

Bouvier's Law Dictionary. 1914. 3 v.

M.J. Gamboa, *Dictionary of International Law and Diplomacy*. 1973.

F. Moreno, *Philippine Law Dictionary* (2d ed., 1982).

I.G. Khan, Jr., *Everybody's Dictionary of Philippine Law*. 2007.

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Encyclopedic Dictionary of International Law. (Clive Parry, et al., eds., 1986).

J.A. Sibal, *Philippine Legal Encyclopedia* (1986).

Stroud's *Judicial Dictionary of Words and Phrases.* 4th ed., 1974. 5 v.

West's *Legal Thesaurus/Dictionary.*

Words and Phrases. 45 v.

2.3.3 Citators

Citators are research aids which provide notational information on the status of a particular case law or the current status of a statute. The purposes of a citator are to give the history and the treatment of a decision or statute by means of symbols. Additionally, it can be used to find other decisions similar to or dependent upon the case under consideration. To use a citator, a researcher must have a citation to a decision on a principle of case law or the citation to a statute. Then, one proceeds to the appropriate volume of the citators which are arranged by jurisdiction and the listing of volumes of case reports or statutes covered.

The term "Shepardize" which is in current use may be defined as the process of checking the status of cases or statutes in the Shepard's Citations. The history of the decisions indicates subsequent appeals and the disposition of the appeal is indicated either as affirmed, modified, reversed, superseded or vacated. This is followed by the treatment of the decision which includes the citations of subsequent cases which criticized, expanded, explained, followed or overruled the decision or merely cited the decision.

Insofar as statutes citations are concerned, the notations cover the form and operation of the law by the legislature and the courts. Its operation is identified by abbreviations denoting legislative changes, *i.e.* amendments, repeals, revisions, re-enactments, etc., and judicial interpretations such as

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constitutional, unconstitutional, invalid or void, unconstitutional in part, etc.

There is a Shepard's Citator for every state and federal reports, codes, session laws and all the units of the National Reporter System.

Examples: Dizon's *Philippine Citations* (1937)

A. Paras, *Philippine Citations*. 2 v. 1965

Philippine Citations are found in v. 11 and 13 of the *Philippine Digest* and v. 7 of the *Republic of the Philippine Digest* and its supplement

Shepard's Federal Citations

2.3.4 Indexes

Indexes are alphabetical lists of important words and concepts covered in a book, a set of books or research sources that assists the researcher in locating the primary or secondary sources.

Examples: R.B. Gorospe & L.F. Echiverri. *Index to SCRA Annotations*, v. 1-327, 1961-2001 (IJA, 2002).

Index to Official Gazette, 1945-1985. 2 v. (Supreme Court Library Service)

SCRA Quick Index Digest, 6 v. Supplemented annually

A.L.R. Quick Index to 3rd, 4th and 5th.

2.3.5 Directories

Law directories lead you to information about lawyers, law firms, law schools, law libraries, courts or administrative agencies. They vary in scope and approach from giving addresses of lawyers, their areas of practice, short bio-data to phone numbers, law firms' websites, descriptions of institutions, or functions of agencies and contact persons.

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Examples: Supreme Court of the Philippines. *Law List*, 2003.

Martindale-Hubbel's Law Directory. 4 v. Annually.

Directory of Asean Legal Scholars. P.V. Quisumbing, M.S. Feliciano & I.A. Manguiat, comps.) 1986.

West's Legal Directory.

AALS Directory of Law Teachers.

2.3.6 Tables

Usually, Tables are alphabetical listings of case names or statutes with references to the law reports or publications where the cases or laws can be located. Another type of table is that which gives the comparative or parallel citations to official and unofficial case reports or compilation by statutes.

Examples: *National Reporter Blue Book*

C. Sison, ed. *The 1987, 1973 & 1835 Philippine Constitutions; A Comparative Table*. 1999

2.4 Other Sources

2.4.1 Opinions of Legal Experts

Example: Manresa, *Commentaries on the Spanish Civil Code*.

2.4.2 Other State and Foreign Sources

These sources can only be utilized if the Philippine law was patterned after a foreign law.

Example: U.S. Constitution

3. PRELIMINARY STEPS

Before using the library, critical fact-related steps that must precede research in law books are the following:

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3.1 Gathering the facts from the problem raised by your client's situation and put it on paper, answer five (5) "Ws" and one (1) "H" for convenience:

- Who did it and to whom?
- What was done?
- When was it done?
- Where was it done?
- Why was it done?
- How was it done?

3.2 Analyze the Facts

In fact analysis, one focuses on five elements common to most problems. The purpose of such analysis is the suggested points of departure in the search for legal materials. In considering each element, one should concentrate on "catch words," legal concepts or descriptive words in the problem since these will lead to relevant words in law books such as digests, encyclopedias, indexes, legal treatises, etc. For guidance, use the TARP rule[10] as follows:

- T – Thing or Subject Matter in the controversy without which the problem would not have arisen. Does the controversy involve property? Contract? Negligence, etc.? Identify all significant things perceptible to the senses involved in the problem.
- A – Cause of Action or Ground of Defense. The cause of action is the claim asserted by one person against the other while the ground of defense is the position of one against whom the claim is asserted. Identify the alleged infraction or wrong suffered by the plaintiff or those reasons in law or fact given by the defense why these claims arguably should not be recovered or why the cause may not be successful. Is it a breach of contract? Negligence?

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[10] This was adopted by Prof. Ervin H. Pollack in FUNDAMENTALS OF LEGAL RESEARCH 14-15 (2d ed., 1962).